

Analysis of Motion to Strike. Plaintiff's prayer properly requests estimated damages from harms allegedly caused by JAMESON Defendants' acts or omissions, notably those flowing from her allegedly being deceived into continuing with the real estate purchase and having to engage in repairs more costly than estimated. That portion of the prayer is not appropriately struck from the pleading. However, Plaintiff concedes that she alleges no basis for the recovery of attorneys' fees; her prayer for attorneys' fees is appropriately struck from the pleading.

Conclusion. JAMESON Defendants' demurrer is overruled. JAMESON Defendants' motion to strike is granted without leave to amend as follows: the 1AC's prayer for attorneys' fees is ordered struck. JAMESON Defendants' motion to strike is otherwise denied.

ANTHONY SMITH vs. HARSHAD B. WADHAR, MD
Case No. CU24-07285

Plaintiff's Motion to Compel Further Responses to Requests for Production, Set Three

TENTATIVE RULING

Plaintiff ANTHONY SMITH's motion to compel Defendant HARSHAD B. WADHAR, M.D.'s further responses to Plaintiff's requests for production, set three, is denied. Defendant served his responses to Plaintiff's requests for production by mail on August 20, 2025, giving Plaintiff fifty days to move to compel further responses. (Code Civ. Proc., §§ 1013, 2031.310, subd. (c).) This set Plaintiff's motion deadline at October 9, 2025. Plaintiff did not file his motion – even measured from the time that he submitted the motion to prison authorities per the “prison mailbox rule” – until October 21, 2025.

MARSHALL TUBBS vs. COUNTY OF SOLANO GENERAL SERVICES; ET AL.
Case No. CU25-09311

Demurrer by COUNTY OF SOLANO GENERAL SERVICES DEPARTMENT to
Complaint

TENTATIVE RULING

In general, as a prerequisite to the filing of FEHA-based causes of action, the plaintiff must first file a charge with the DFEH (California Dept. of Fair Employment and Housing) or in more recent times the California Civil Rights Department (CRD), and then upon issuance of a right-to-sue letter, file within the applicable time a civil complaint alleging those FEHA-based causes of action. Government Code §12960; Kim v. Konad USA Distribution, Inc. (2014) 226 Cal.App.4th 1336, 1345 [“Before filing a civil action alleging FEHA violations, an employee must exhaust his or her administrative remedies with DFEH . . . Exhaustion includes the timely filing of